

# Borrow Ko To

## Terms and Conditions

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### Rental Item Rules, Return Guidelines, and User Responsibilities

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**Important Notice:** This document is a draft platform policy for Borrow Ko To. It explains the rules for renting, borrowing, returning, and handling items. It is not legal advice. Before using it as an official public policy, the system owner should ask a lawyer or legal adviser to review it.

## A. Legal Basis and Platform Position

In the Philippine setting, a rental transaction is treated as an agreement between parties. A user who rents an item is expected to follow the agreed rental terms, pay the required rental price, use the item properly, and return the item after the rental period.

- Civil Code Article 1159 states that obligations from contracts have the force of law between the contracting parties and must be complied with in good faith.
- Civil Code Article 1657 provides that the lessee must pay the lease price and use the leased thing with proper care based on the agreed use.
- Civil Code Article 1665 provides that the lessee must return the leased thing when the lease ends, except for ordinary wear and tear or unavoidable causes.
- Civil Code Article 1667 provides that the lessee may be responsible for deterioration or loss unless the lessee proves that it happened without fault.
- If an item is not returned, it is not automatically a criminal case. However, depending on the facts and proof, refusal to return or misappropriation of property received under an obligation to return may be evaluated under estafa rules in Article 315 of the Revised Penal Code.

Borrow Ko To should not declare a user guilty of a crime. The platform should record the issue, preserve evidence, restrict accounts when needed, and allow affected users to seek barangay, civil, or legal action through proper channels.

## B. Terms and Conditions

### 1. Acceptance of Terms

By using Borrow Ko To, the user agrees to follow the platform rules for listing, renting, borrowing, returning, and handling items. These terms apply to item owners and renters.

### 2. User Account and Verification

Users must provide true, correct, and updated information. Borrow Ko To may require identity verification, contact details, address details, and other supporting information before allowing a user to list or rent items.

### 3. Item Listing Rules

Item owners must provide accurate item details such as item name, description, condition, rental price, security deposit, quantity available, pickup or meetup location, rental inclusions, and return rules. Owners must not list stolen, illegal, unsafe, fake, or misleading items.

#### **4. Rental Booking**

A renter may send a booking request for an item. The booking is not final until the owner approves it and the required payment or deposit process is completed. The renter must review the item details, price, rental period, quantity, pickup or delivery method, and return schedule before confirming the booking.

#### **5. Quantity Rule**

If the item has multiple available quantities, the renter must choose the quantity needed. The platform should only allow booking up to the available quantity. The item quantity should only be deducted once the booking reaches the approved, confirmed, or paid status based on the final system flow.

#### **6. Payment and Security Deposit**

The renter agrees to pay the rental fee and required security deposit, if applicable. The security deposit may be used for late return fees, item damage, missing parts, cleaning fees, repair cost, replacement cost, or unreturned items. If the item is returned properly and there is no valid claim, the deposit should be returned to the renter based on the platform refund process.

#### **7. Item Handover**

Before the item is released, both owner and renter should confirm the handover through the platform. Borrow Ko To may require QR code confirmation, item photos, accessory photos, condition checklist, meetup confirmation, and date and time record. These records help prove the actual condition of the item before the renter receives it.

#### **8. Renter Duties**

The renter must use the item only for its intended purpose, take care of the item properly, avoid lending it to another person without permission, keep all accessories complete, return the item on or before the agreed date, report any damage or issue immediately, and pay valid charges for late return, damage, loss, or missing parts.

#### **9. Owner Duties**

The owner must provide the item in the condition stated in the listing, disclose known defects, provide all listed inclusions, be available for the agreed pickup and return schedule, review the returned item fairly, and avoid false damage claims.

#### **10. Return of Item**

The renter must return the item on the agreed date, time, and location. Upon return, both parties should confirm the return through the platform. The return may require QR scan, return confirmation, after-return photos, condition comparison, owner approval, and renter confirmation. The return is considered completed only when the owner confirms that the item was received or when the platform verifies the return process.

#### **11. Late Return**

If the renter fails to return the item on time, the owner may charge a late fee based on the agreed rental rules. A simple rule may be: late fee equals rental price per day multiplied by the number of late days. The platform may also temporarily restrict the renter from making new bookings until the issue is resolved.

#### **12. Damage, Loss, or Missing Parts**

If the item is returned damaged, incomplete, or unusable, the owner may file a damage claim through the platform. The claim should include proof such as before-rental photos, after-return photos, condition checklist, repair estimate, chat records, and meetup or return confirmation. The renter may be charged based on valid repair, cleaning, missing part, or replacement costs.

### 13. Failure to Return the Item

If the renter does not return the item after the rental period, Borrow Ko To may mark the booking as overdue or unresolved. The platform may notify both parties, freeze or restrict the renter account, hold the security deposit, require payment for late fees or replacement cost, allow the owner to file a dispute, and provide transaction records for proper action when needed.

### 14. Dispute Handling

If there is a disagreement between owner and renter, either party may file a dispute. Borrow Ko To may review booking details, photos, QR scan records, messages, payment records, pickup and return records, and condition checklists. The platform may support decisions such as deposit deduction, account restriction, or dispute status updates. Serious legal claims should still be handled through proper legal channels.

### 15. Prohibited Actions

Users are not allowed to list fake or stolen items, rent an item using false identity, refuse to return an item, sell or pawn a rented item, damage an item intentionally, use the item for illegal activities, harass or threaten another user, make false damage claims, or bypass the platform transaction process.

### 16. Platform Limitation

Borrow Ko To acts as a digital platform for rental listings, bookings, communication, confirmation, and transaction records. The platform cannot fully guarantee that every item will be returned. However, it provides safety features to reduce risk and support evidence if a problem happens.

### 17. Agreement

By confirming a rental transaction, both owner and renter agree to follow the rental terms, return rules, payment rules, and dispute process of Borrow Ko To.

## C. Secure Return Process

Borrow Ko To cannot promise a 100 percent guaranteed return. However, it can make the return process more secure by using evidence-based steps.

1. User verifies account before renting or listing items.
2. Owner approves the booking request before the item is released.
3. Renter pays rental fee and security deposit when required.
4. Owner uploads before-rental item photos and condition checklist.
5. Both parties confirm item release using QR code or platform confirmation.
6. System records the return deadline and sends reminders.
7. Renter returns the item on the agreed date, time, and location.
8. Owner uploads after-return item photos and condition checklist.
9. Both parties confirm the return using QR code or platform confirmation.
10. If there is a problem, either party may file a dispute with evidence.

## D. Suggested App Checkbox Text

### For Renters

I agree that I am responsible for taking care of the rented item and returning it on the agreed date, time, and location. I understand that late return, damage, missing parts, or failure to return the item may result in fees, deposit deduction, account restriction, dispute filing, or possible legal action depending on the situation.

### For Item Owners

I agree to provide accurate item details and release the item in the condition stated in my listing. I understand that false claims, misleading item details, or unsafe items may result in booking cancellation, dispute review, or account restriction.

### E. Suggested Panel Defense Answer

The system cannot fully guarantee that every rented item will be returned, but it improves return security through verified user accounts, security deposits, QR-based handover and return confirmation, item condition photos, rental records, and dispute tracking. These records help both the owner and renter prove what happened during the transaction.

### F. References

- Republic Act No. 386, Civil Code of the Philippines, Article 1159.  
[https://lawphil.net/statutes/repacts/ra1949/ra\\_386\\_1949.html](https://lawphil.net/statutes/repacts/ra1949/ra_386_1949.html)
- Republic Act No. 386, Civil Code of the Philippines, Articles 1657, 1665, and 1667.  
[https://lawphil.net/statutes/repacts/ra1949/ra\\_386\\_1949.html](https://lawphil.net/statutes/repacts/ra1949/ra_386_1949.html)
- Act No. 3815, Revised Penal Code of the Philippines, Article 315.  
[https://lawphil.net/statutes/acts/act\\_3815\\_1930.html](https://lawphil.net/statutes/acts/act_3815_1930.html)